

BC291916 BC291916

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C08%2F13%2F2026

Source SHA-256: cdee6b1c045cc8d0ebbc5193c915c4c5777af018915570c088a016e73bb1ba80

Case Number: BC291916 Hearing Date: August 13, 2026 Dept: 224

NC Two LP VS A&M

TENTATIVE RULING

The Motion for Substitution of Plaintiff is DENIED without prejudice.

This matter was dismissed on March 22, 2007 and remains dismissed. The Case Management Conference and the Order to Show Cause Re Proof of Service which were inadvertently set for December 1, 2026 on this inactive case, are VACATED.

Introduction

On March 11, 2003, Plaintiff NC TWO, L.P. filed the Complaint in this action.

On December 4, 2003, Plaintiff filed a Notice of Settlement of Entire case.

The Court's docket shows a Court-Ordered Dismissal on March 22, 2007.

On March 23, 2026, Plaintiff filed the instant Notice of and Motion for Substitution of Plaintiff.

No opposition has been filed.

Legal Standard

California Code of Civil Procedure section 368.5 states “[a]n action or proceeding does not abate by the transfer of an interest in the action or proceeding or by any other transfer of any interest. The action or proceeding may be continued in the name of the original party, or the court may allow the person to whom the transfer is made to be substituted in the action or proceeding.” The substitution of a party pursuant to this section is within the trial court’s discretion. (Hearn Pacific Corp. v. Second Generation Roofing, Inc. (2016) 247 Cal.App.4th 117, 133-134.)

Courts require the moving party to produce admissible evidence of the transfer itself. (Hearn Pac. Corp. v. Second Generation Roofing, Inc., 247 Cal. App. 4th 117, 201 Cal. Rptr. 3d 806 (2016).)

Procedural Deficiencies

The notice states that the motion is based upon "the accompanying declaration of Bryan M. Grundon." No such declaration appears in the moving papers. The supporting declaration attached is that of Evan Curran. The court will treat the Curran declaration as the supporting evidence.

The memorandum of points and authorities is insufficient. The memorandum cites no authority beyond the bare text of section 368.5 and contains no analysis applying the statute to the facts. (Cal. Rules of Court, rule 3.1113(b).)

Additionally, the Curran declaration was executed in Bedford, Massachusetts. A declaration executed outside California must state that it is made under penalty of perjury under the laws of the State of California. (Code Civ. Proc. § 2015.5.) The declaration omits that recital and is therefore not competent as a declaration under section 2015.5.

For these reasons alone, the motion is deficient and can be denied. However, the Court identifies additional, substantive, deficiencies below that preclude it from granting the motion.

Motion to Substitute Plaintiff

As an initial matter, the Bill of Sale conveys only those loans, judgments, or evidences of debt "described in Exhibit 1.2 attached hereto." Exhibit 1.2 is not

attached, and nothing else in the record identifies the subject obligation as part of the transferred portfolio. On this record the court cannot determine that the claim at issue here was conveyed.

Further, the seller identified in the Bill of Sale is NC Ventures, Inc., not plaintiff NC TWO, L.P. The instrument conveys "all right, title and interest of Seller," and nowhere recites that NC Ventures executed it on behalf of, or in its capacity as general partner of, NC TWO, L.P. The Curran declaration asserts that NC Ventures is the general partner of NC TWO, L.P., but no partnership agreement, certificate of limited partnership, or other evidence of that relationship or of NC Ventures' authority to convey NC TWO's assets is submitted. The underlying Loan Sale Agreement referenced in the Bill of Sale is likewise not provided.

Accordingly, the moving party has not carried its burden of producing admissible evidence that the interest asserted in this action was transferred to Premier Capital, LLC. Absent Exhibit 1.2 or equivalent proof identifying this obligation among the assets conveyed, and absent any showing that NC Ventures, Inc. had authority to convey NC TWO, L.P.'s interest, the Court cannot exercise its discretion under section 368.5 in favor of substitution.

Conclusion

The Motion for Substitution of Plaintiff is DENIED without prejudice.

This matter was dismissed on March 22, 2007 and remains dismissed. The Case Management Conference and the Order to Show Cause Re Proof of Service which were inadvertently set for December 1, 2026 on this inactive case, are VACATED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.